

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE SUBMITTING TO THE QUALIFIED ELECTORS, AT A SPECIAL REFERENDUM ELECTION TO BE CONDUCTED ON TUESDAY, NOVEMBER 10, 2015, THE FOLLOWING QUESTION: 'SHALL CHARTER ORDINANCE NO. 1 ESTABLISHING THE POSITION OF CITY ADMINISTRATOR AND EXEMPTING THE CITY OF CHEYENNE, AS A FIRST CLASS CITY, FROM CERTAIN SECTIONS OF THE WYOMING STATUTES, TAKE EFFECT?'"

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the Governing Body of the City of Cheyenne, Wyoming, by Charter Ordinance Number 1, approved on August 10, 2015, has directed the holding of a special referendum election, as provided by Article 13, Section 1. (c) of the Wyoming Constitution, to submit to the qualified electors, voting in said special referendum election, the question whether Charter Ordinance Number 1, establishing the position of City Administrator and exempting the City of Cheyenne, as a first class city, from certain sections of the Wyoming Statutes, should take effect.

Section 2. That the ballot question to be submitted to the qualified electors at the special referendum election to be conducted on November 10, 2015 shall read as follows:

SHALL CHARTER ORDINANCE NO. 1 ESTABLISHING THE POSITION OF
CITY ADMINISTRATOR AND EXEMPTING THE CITY OF CHEYENNE, AS
A FIRST CLASS CITY, FROM CERTAIN SECTIONS OF THE WYOMING
STATUTES, TAKE EFFECT?

FOR THE CHARTER ORDINANCE TAKING EFFECT _____

AGAINST THE CHARTER ORDINANCE TAKING EFFECT _____

Section 3. That, pursuant to Article 13, Section 1. (c) of the Wyoming Constitution, Charter Ordinance Number 1 shall take effect only if approved by a majority of the qualified electors voting in the special referendum election to be conducted on November 10, 2015.

Section 4.

(a) That the polling (voting) places for the special referendum election are established as follows:

David Romero Youth Activity and Community Center, 1317 Parsley Blvd.
Storey Gym, 2811 House Ave.
Cheyenne-Kiwanis Community House, 4603 Lions Park Dr.
Cheyenne Berean Church, 5716 Powderhouse Rd.

North Christian Church, 2015 Tranquility Rd.
Cheyenne Alliance Church, 5200 Ridge Rd.
First Congregational Church, 3501 Forest Dr.
VFW #1881, 2816 E. 7th St.
Cheyenne Hills Church, 7505 U.S. Hwy. 30

(b) On the day of the election, the established polling places will open at 7:00 a.m. and will remain open continuously until 7:00 p.m., at which time the polling places will be closed.

Section 5.

(a) That qualified electors will be entitled to vote on the ballot question in person or by absentee ballot as provided by special referendum election procedures and guidelines as set forth in this ordinance. A “qualified elector” is defined as a person who is a citizen of the United States, who is a bona fide resident of the State of Wyoming, who is a bona fide resident of the City of Cheyenne, who has registered to vote and who will be at least eighteen (18) years of age on the day of the special referendum election to be conducted on November 10, 2015. No person is a qualified elector who is a currently adjudicated mentally incompetent person, or who has been convicted of a felony and his or her civil or voting rights have not been restored.

(b) Absentee voting on the ballot question is permitted as hereinafter provided for in the Proclamation and Notice of Election.

Section 6. That the Laramie County Clerk shall prepare and provide the election ballots; compile and maintain the qualified elector poll lists; provide election judges, staffing and electronic voting equipment and election supplies necessary to conduct the election and tabulate the results; and conduct the election pursuant to applicable procedures and guidelines as determined by the Laramie County Clerk. The City of Cheyenne shall pay for the actual costs of the election.

Section 7. That electronic ballots and an electronic voting system will be used for voting and for the tabulation of votes cast “FOR THE CHARTER ORDINANCE TAKING EFFECT” or “AGAINST THE CHARTER ORDINANCE TAKING EFFECT” as stated in the ballot question. Absentee ballots will be tabulated electronically following closure of the polling places.

Section 8. That approval of this ordinance shall be not more than ninety (90) days before the date of the election. In addition to publication of this ordinance, the City Clerk will cause the Proclamation and Notice of Special Referendum Election and the Public Notice of Elector Qualifications portion of this ordinance, to be published twice in a newspaper of general circulation within the City prior to the election date. The Proclamation and Notice of Special Referendum Election shall specify the name of the City, the date, time and place of election, the purpose of the election and the fact that only qualified electors will be permitted to vote thereon. The Proclamation and Notice of Special Referendum Election and Public Notice of Elector Qualifications, will be in substantially the following form:

**PROCLAMATION AND NOTICE OF SPECIAL
CITY OF CHEYENNE REFERENDUM ELECTION**

City of Cheyenne, Wyoming

PUBLIC NOTICE IS HEREBY GIVEN that the Governing Body of the City of Cheyenne, Wyoming, has approved Ordinance No. _____, the title of which Ordinance is as follows:

ORDINANCE NO. _____

“AN ORDINANCE SUBMITTING TO THE QUALIFIED ELECTORS, AT A SPECIAL REFERENDUM ELECTION TO BE CONDUCTED ON TUESDAY, NOVEMBER 10, 2015, THE FOLLOWING QUESTION: ‘SHALL CHARTER ORDINANCE NO. 1 ESTABLISHING THE POSITION OF CITY ADMINISTRATOR AND EXEMPTING THE CITY OF CHEYENNE, AS A FIRST CLASS CITY, FROM CERTAIN SECTIONS OF THE WYOMING STATUTES, TAKE EFFECT?’”

PUBLIC NOTICE IS HEREBY GIVEN that at a special referendum election to be held on Tuesday, November 10, 2015 between the hours of 7:00 a.m. and 7:00 p.m., there will be submitted to qualified electors the following question:

SHALL CHARTER ORDINANCE NO. 1 ESTABLISHING THE POSITION OF CITY ADMINISTRATOR AND EXEMPTING THE CITY OF CHEYENNE, AS A FIRST CLASS CITY, FROM CERTAIN SECTIONS OF THE WYOMING STATUTES, TAKE EFFECT?

FOR THE CHARTER ORDINANCE TAKING EFFECT _____

AGAINST THE CHARTER ORDINANCE TAKING EFFECT _____

The Election Polling Places shall be as follows:

David Romero Youth Activity and Community Center, 1317 Parsley Blvd.
Storey Gym, 2811 House Ave.
Cheyenne-Kiwanis Community House, 4603 Lions Park Dr.
Cheyenne Berean Church, 5716 Powderhouse Rd.
North Christian Church, 2015 Tranquility Rd.
Cheyenne Alliance Church, 5200 Ridge Rd.
First Congregational Church, 3501 Forest Dr.
VFW #1881, 2816 E. 7th St.
Cheyenne Hills Church, 7505 U.S. Hwy. 30

Any qualified elector will be entitled to one (1) vote on the ballot question in person or by absentee ballot as provided in procedures and guidelines for the special referendum election as set forth in this ordinance. A “qualified elector” is defined as a person who is a citizen of the United States, who is a bona fide resident of the State of Wyoming, who is a bona fide resident of the City of Cheyenne, who has registered to vote and who will be at least eighteen (18) years of age on the day of the special referendum election to be conducted on November 10, 2015. No person is a qualified elector who is a currently adjudicated mentally incompetent person, or who has been convicted of a felony and his or her civil or voting rights have not been restored.

Votes cast on the date of the special referendum election will be electronically tabulated, following closure of the polling places. The ballots will contain the same ballot question as stated above, and an electronic ballot will be provided to permit the qualified elector to indicate his or her vote “FOR THE CHARTER ORDINANCE TAKING EFFECT” or “AGAINST THE CHARTER ORDINANCE TAKING EFFECT.” Absentee ballots will be tabulated electronically, following closure of the polling places and such ballots will contain the same ballot question as stated above.

Any qualified elector who will be absent on election day, or who can not be present on election day at one of the polling places established by this ordinance, may vote by absentee ballot upon making application in person, in writing, or by telephone, to the Laramie County Clerk’s Office, 309 W. 20th St., Cheyenne, WY 82001, for an absentee ballot, and by furnishing the following information:

Name in full; date of birth; current residence address (within the City of Cheyenne) by street, city and zip code; the election for which the absentee ballot is being requested; a statement that the elector is entitled to vote in the election, and, if not obtained in person by the elector, the address to which the absentee ballot is to be mailed or the name of the individual the elector designates in writing to deliver the ballot to the elector.

A request for an absentee ballot may be made on behalf of an absentee qualified elector if the prescribed information is furnished. A request for an absentee ballot must be made not later than the close of business on the day prior to the special referendum election. All absentee ballots must be received in the Laramie County Clerk’s Office by 7:00 p.m. on the day of the election to be counted.

IN WITNESS WHEREOF, the Governing Body of the City of Cheyenne, Wyoming, has caused this Proclamation and Notice of Special Election to be given by the City Clerk as of the _____ day of _____, 2015.

Carol Intlekofer, City Clerk

PUBLISHED: WYOMING TRIBUNE-EAGLE
PUBLICATION DATE:

**PUBLIC NOTICE OF ELECTOR QUALIFICATIONS
FOR CITY OF CHEYENNE SPECIAL REFERENDUM ELECTION**

City of Cheyenne, Wyoming

_____ PUBLIC NOTICE IS HEREBY GIVEN that the list of qualified electors, who are eligible to cast their ballots at the special referendum election to be held in Cheyenne, Wyoming on Tuesday, November 10, 2015, will be prepared and maintained by the Laramie County Clerk, in electronic format.

A “qualified elector” is defined as a person who is a citizen of the United States, who is a bona fide resident of the State of Wyoming, who is a bona fide resident of the City of Cheyenne, who has registered to vote and who will be at least eighteen (18) years of age on the day of the special referendum election to be conducted on November 10, 2015. No person is a qualified elector who is a currently adjudicated mentally incompetent person, or who has been convicted of a felony and his or her civil or voting rights have not been restored.

An applicant may register to vote in person at a polling place on the date of the special referendum election and may cast a vote if the applicant is a “qualified elector” as defined in this ordinance.

On the date of the special referendum election, an applicant attempting to register who lacks proof of identification as required by W.S. § 22-3-104, shall be offered a provisional ballot in accordance with W.S. § 22-3-105 and permitted, until the close of business on the day following the special referendum election, to present documentation to the Laramie County Clerk establishing his or her eligibility to register, to vote in the special referendum election as a “qualified elector” as defined in this ordinance, and to have his or her ballot counted.

Section 9.

(a) That immediately following closure of the polling places established by this ordinance, the Laramie County Clerk will proceed to tabulate the ballots and issue unofficial results of the election. Members of the Laramie County Canvassing Board will meet no later than three (3) days following the closure of the polling places to officially certify the results of the election. The Laramie County Clerk shall provide written certification of the official election results to the Cheyenne City Clerk.

(b) If the majority of votes cast on the ballot question is in favor of Charter Ordinance No. 1 taking effect, the question will have carried and the governing body will then proceed to declare the results of the special election effective as of January 3, 2017.

Section 10. That the special referendum election will be held, conducted and the results tabulated and canvassed as set forth in this ordinance and pursuant to applicable election procedures and guidelines as determined by the Laramie County Clerk.

Section 11. That this ordinance shall be in full force and effect upon its approval and publication.

FIRST READING:

SECOND READING:

THIRD AND FINAL READING:

(SEAL)

RICHARD L. KAYSEN, MAYOR

ATTEST:

CAROL INTLEKOFER, CITY CLERK

PUBLISHED: Wyoming Tribune Eagle